

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Royal Naval Reserve (Volunteer) Act, 1859 ...	22 & 23 Vict. c. 40.
Military Training Act, 1939 ...	2 & 3 Geo. 6. c. 25.
National Service (Armed Forces) Act, 1939 ...	2 & 3 Geo. 6. c. 81.
National Service Act, 1948 ...	11 & 12 Geo. 6. c. 64.
Auxiliary and Reserve Forces Act, 1949 ...	12, 13 & 14 Geo. 6. c. 96.
Army Reserve Act, 1950 ...	14 Geo. 6. c. 32.
Air Force Reserve Act, 1950 ...	14 Geo. 6. c. 33.
Reinstatement in Civil Employment Act, 1950 ...	14 & 15 Geo. 6. c. 10.
Reserve and Auxiliary Forces (Protection of Civil Interests) Act, 1951 ...	14 & 15 Geo. 6. c. 65.

CHAPTER 11

Licensing (Seamen's Canteens) Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Power to authorise grant of retailers' excise on-licences for seamen's canteens.
2. Procedure for grant of licences.
3. Repeal of emergency provisions authorising the sale of intoxicating liquor in canteens and consequential transitional provisions.
4. Renewal of licences.
5. Transfer of licences.
6. Rights of appeal.
7. Permitted hours for sale of intoxicating liquor in canteens licensed under this Act.
8. Prohibition on sale or supply of intoxicating liquor in a canteen licensed under this Act for consumption off the premises.
9. Exemption of canteens licensed under this Act from restrictions under s. 214 of the Merchant Shipping Act, 1894.
10. Jurisdiction and service of notices.
11. Provisions relating to offences.
12. Short title, interpretation, repeals, extent and commencement.

SCHEDULES:

First Schedule—Grant and transfer of licences.

Second Schedule—Provisions of Licensing Acts applied to licences under this Act.

An Act to make provision for the sale of intoxicating liquor in seamen's canteens, and to revoke Regulation 60AA of the Defence (General) Regulations, 1939; and for purposes connected with the matters aforesaid.

[10th February, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If a body approved by the Minister of Transport and Civil Aviation have provided or propose to provide a seamen's canteen the need for which has been certified by that Minister, after consultation with the Merchant Navy Welfare Board, the licensing authority may grant a licence under this Act authorising the person who is the manager of the canteen to hold a retailer's excise on-licence to sell intoxicating liquor in the canteen; and an excise licence may be granted to him accordingly notwithstanding that he does not hold a justices' licence or certificate.

Power to authorise grant of retailers' excise on-licences for seamen's canteens.

(2) In this Act the expression "licensing authority" means, as respects England and Wales, the licensing justices, and, as respects Scotland, the licensing court.

2.—(1) The licensing authority shall not refuse to grant a licence under this Act except under the following subsection or on one or more of the following grounds, that is to say—

Procedure for grant of licences.

- (a) that the applicant is disqualified by any Act for holding a justices' licence or certificate or is in other respects not a fit and proper person to hold a licence under this Act; or
- (b) that the premises are not fit and convenient for the purposes of the canteen; or
- (c) in a case where objection has been made to the situation of the canteen, on the ground specified in the objection; or
- (d) that the applicant or body providing the canteen has entered into an agreement limiting the sources from which the intoxicating liquor or the mineral waters to be sold in the canteen may be obtained,

but nothing in this subsection shall prevent the licensing authority from specifying in the licence granted by them a kind of retailer's excise on-licence other than that requested by the applicant.

(2) Before application is made for the grant of a licence under this Act draft rules as to the persons entitled to use the canteen shall be prepared for submission with the application and the licensing authority shall refuse to grant the licence unless the

body providing the canteen undertake to make rules for the canteen in the form of the draft, with the modifications, if any, required by the licensing authority, and not to vary those rules without the consent of the licensing authority.

(3) Any licence granted under this Act shall provide that at all times at which intoxicating liquor is sold food and beverages other than those of an intoxicating character shall also be provided for sale.

(4) Part I of the First Schedule to this Act shall have effect as respects the notices to be given and the documents to be served on an application for the grant of a licence under this Act.

(5) A licence under this Act may, in a case where it is proposed to construct or convert premises for a seamen's canteen, be a provisional licence to be made final after the proposal has been carried out; and Part II of the said First Schedule shall have effect as respects such licences.

(6) In Scotland, a person, other than the procurator fiscal or the chief officer of police, intending to oppose an application for the grant of a licence under this Act shall, not later than five days before the hearing of the application, give notice in writing of his intention to the applicant and to the licensing court, specifying the ground of his objection.

Repeal of
emergency
provisions
authorising
the sale of
intoxicating
liquor in
canteens and
consequential
transitional
provisions.

3.—(1) Regulation 60AA of the Defence (General) Regulations, 1939 (which authorises the sale of intoxicating liquor in canteens without a justices' licence or certificate) shall cease to have effect on the appointed day.

(2) Where an authorisation under the said Regulation is in force as respects a seamen's canteen when application is made for the grant of a licence under this Act for that canteen to come into force on the appointed day—

- (a) the licensing authority shall not have power to refuse the grant on the grounds set out in paragraph (b) or paragraph (c) of subsection (1) of the last foregoing section, but may refuse it on the ground that the canteen has been improperly conducted; and
- (b) the licensing authority shall not without the consent of the body providing the canteen specify in the licence granted by them a kind of retailer's excise on-licence not permitting the sale of any description of intoxicating liquor to which the authorisation extends; and
- (c) the licensing authority shall not have power to require modifications in the draft rules submitted under subsection (2) of the last foregoing section if those draft rules correspond to restrictions and conditions subject to which the authorisation was granted.

4.—(1) A licence under this Act shall, unless renewed under this section, expire— Renewal of
licences.

(a) in England and Wales, on the fourth day of April, and

(b) in Scotland, on the twenty-seventh day of May,
next after the date on which it comes into force.

(2) If the Minister of Transport and Civil Aviation has, in the calendar year in which the licence would otherwise expire, certified that the canteen is still needed, the licensing authority may renew the licence for a further period of twelve months.

(3) The licensing authority shall not refuse an application for the renewal of a licence under this Act except under subsection (4) of this section or on one or more of the following grounds, that is to say—

(a) that the manager is disqualified by any Act for holding a justices' licence or certificate or is in other respects not a fit and proper person to hold a licence under this Act, or

(b) that the rules as to the persons entitled to use the canteen have not been observed or that the canteen has in other respects been improperly conducted, or

(c) that the manager or the body providing the canteen has entered into an agreement of the kind mentioned in paragraph (d) of subsection (1) of section two of this Act.

(4) On renewing a licence under this Act the licensing authority may by order, to be served on the holder, direct that, within a time fixed by the order, such structural alterations shall be made in the premises comprising the canteen as they think reasonably necessary to secure the proper conduct of the canteen; and if, when application for renewal of the licence is next made after the time fixed by the order has expired, it is not shown to the satisfaction of the licensing authority that the order has been complied with, the licensing authority may refuse to renew the licence.

If an order under this subsection is complied with, the licensing authority shall not make a further order within the five years following the first-mentioned order.

(5) If the applicant for renewal of a licence under this Act has given such notices as the licensing authority may require and so requests, the licensing authority may at their discretion in renewing the licence vary the kind of retailer's excise on-licence to be authorised by the licence so renewed.

(6) In England and Wales a person intending to oppose an application for renewal of a licence under this Act shall, not later than five days before the hearing of the application, give notice in writing to the holder of the licence specifying the ground

of his objection and in Scotland such a person, other than the procurator fiscal or the chief officer of police, shall within that time give the like notice to the holder of the licence and to the licensing court.

Transfer of
licences.

5.—(1) A licence under this Act shall not authorise the grant or transfer of a retailer's excise on-licence to a manager of the canteen who is not the individual to whom the licence under this Act was granted unless the licence under this Act has been transferred to him; but where the holder of a licence under this Act has in pursuance of this Act been granted an excise licence and subsequently ceases to be the manager of the canteen, the person for the time being in charge of the canteen may, during the period of fourteen days from the date on which the holder of the licences ceased to be the manager, sell intoxicating liquor in the canteen as if those licences had been transferred to him.

(2) The power to transfer a licence under this Act shall be exercisable by the licensing authority or by justices of the peace for the petty sessions area in which the canteen is situated.

(3) A licence transferred under this section by justices of the peace shall become void at the expiration of three months from the date on which the transfer takes effect—

- (a) unless within that period the transfer has been confirmed by the licensing authority, or a further transfer has been made under this section; or
- (b) unless the transfer is to a person resuming the management of the canteen after an interval not exceeding four weeks.

(4) A transfer of a licence under this Act and the confirmation of such a transfer shall not be refused except on the ground that the applicant is disqualified by any Act for holding a justices' licence or certificate or is in other respects not a fit and proper person to hold a licence under this Act.

(5) An applicant under this section shall give the notices required by Part III of the First Schedule to this Act.

(6) In Scotland the power to transfer a licence under this Act shall be exercisable by the licensing court or by any two members thereof and subsections (2) and (3) of this section shall not apply.

Rights of
appeal.

6.—(1) Where the licensing authority—

- (a) refuse to grant, renew or transfer a licence under this Act; or
- (b) on an application for the grant of a licence under this Act do not authorise the kind of retailer's excise on-licence duly requested by the applicant; or

- (c) on an application for renewal of a licence under this Act do not comply with the applicant's request duly made for a change in the kind of retailer's excise on-licence to be authorised; or
- (d) require modifications in the rules proposed to be made as to the persons entitled to use the canteen, or withhold their consent to a variation of those rules; or
- (e) make an order under subsection (4) of section four of this Act,

any person aggrieved may appeal, in England or Wales, to the court of quarter sessions having jurisdiction under section thirty-five of the Licensing Act, 1953, in the district where the canteen is situated, and, in Scotland, to the court of appeal under the Licensing (Scotland) Act, 1903:

Provided that an appeal under paragraph (e) of this subsection in respect of a canteen in a borough in England or Wales having a separate court of quarter sessions may be to that court.

(2) In England and Wales sections thirty-five to thirty-seven of the Licensing Act, 1953, shall apply in relation to an appeal under this section as they apply in relation to an appeal against a refusal to renew or transfer a justices' licence.

- 7.—(1) No person shall, except during the permitted hours,—
- (a) himself, or by his servant or agent, sell or supply intoxicating liquor to any person in a canteen as respects which a licence under this Act is in force; or
 - (b) consume intoxicating liquor in any such canteen:

Permitted hours for sale of intoxicating liquor in canteens licensed under this Act.

Provided that this subsection shall not prevent the consumption of intoxicating liquor at a meal at any time within half an hour after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if the liquor was supplied during the permitted hours and served at the same time as the meal and for consumption at the meal.

(2) Subject to the following provisions of this section, the permitted hours for the purposes of this section shall be those fixed by or under Part VII of the Licensing Act, 1953, or, in Scotland, the Licensing Act, 1921, for licensed premises in the district in which the canteen is situated.

(3) In Scotland, Wales and Monmouthshire the permitted hours on Sundays shall for the purposes of this section be those, if any, fixed by the canteen rules; but those hours shall not be more than five, and there shall not be more than two between noon and three in the afternoon or more than three between six and ten in the evening, and none outside those periods.

(4) Before rules are made or varied for the purposes of subsection (3) of this section a draft of the proposed rules shall, after such notices have been given as the licensing authority may require, be submitted to the licensing authority who may, within the limits laid down in that subsection, modify the proposed rules, but not so as to reduce the total number of hours proposed to be permitted; and the rules shall not be made or varied except in accordance with the draft so submitted and subject to the modifications, if any, made by the licensing authority.

(5) Section one hundred and seven of the Licensing Act, 1953 (which enables special orders of exemption to be granted for licensed premises) and section forty of the Licensing (Scotland) Act, 1903 (which makes corresponding provision for Scotland) shall apply as respects a licence under this Act and the canteen to which it relates as they apply as respects a justices' on-licence, or, as the case may be, a certificate of a licensing court, and the premises to which that licence or certificate relates:

Provided that in the said section forty as applied by this subsection the words "not originating directly or indirectly with the person holding such certificate" shall be omitted.

(6) A person contravening this section shall be liable on summary conviction to a fine not exceeding thirty pounds.

Prohibition on sale or supply of intoxicating liquor in a canteen licensed under this Act for consumption off the premises.

8. Intoxicating liquor shall not be sold or supplied in a canteen as respects which a licence under this Act is in force for consumption outside the canteen and if any person—

(a) himself, or by his servant or agent, sells or supplies intoxicating liquor in such a canteen for consumption outside the canteen, or

(b) takes intoxicating liquor from any such canteen for consumption outside the canteen,

he shall be liable on summary conviction to a fine not exceeding thirty pounds.

Exemption of canteens licensed under this Act from restrictions under s. 214 of the Merchant Shipping Act, 1894.

9. A hostel which includes a canteen as respects which a licence under this Act is in force shall be exempt from any byelaws made under section two hundred and fourteen of the Merchant Shipping Act, 1894, and from any Order in Council under that section requiring that only persons duly licensed under such byelaws shall keep seamen's lodging houses or let lodgings to seamen.

Jurisdiction and service of notices.

10.—(1) The power of renewing licences under this Act conferred on the licensing authority shall be exercisable at the general annual licensing meeting or, in Scotland, at the general half yearly meeting in March, and any other power so conferred shall be exercisable on any occasion on which they have power to deal with any matter relating to a justices' licence or certificate.

(2) The Second Schedule to the Licensing Act, 1953 (which gives licensees a right to receive notice of the holding of meetings of the licensing authority) shall apply in England and Wales as if references therein to a justice's licence included references to a licence under this Act.

(3) The power of transferring licences under this Act conferred on justices of the peace shall be exercisable by the number of justices, and in the place, required by the Magistrates' Courts Act, 1952, for the hearing of a complaint.

(4) Any power conferred by this Act on justices shall be exercisable by a majority of the justices present at the meeting.

(5) Any notice or document required or authorised to be given or served under this Act may be served by post.

11.—(1) The Licensing Act, 1953, and the corresponding Acts extending to Scotland shall have effect as if in the provisions of that Act listed in the Second Schedule to this Act (which relate to offences connected with licensed premises) and in the corresponding Scottish enactments so listed—

Provisions
relating to
offences.

- (a) references to a justices' licence or certificate included references to a licence under this Act, and
- (b) references to licensed premises or a bar in licensed premises included references to a canteen in respect of which a licence under this Act is in force.

(2) Where the manager of a canteen in Scotland licensed under this Act is guilty of any act or omission which would, if he were the holder of a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903, constitute a breach of his certificate, he shall be guilty of an offence and liable to the like punishment as for a breach of certificate.

(3) Section one hundred and fifty-four of the Licensing Act, 1953 (which relates to the proof of sale or consumption of intoxicating liquor) shall apply in England and Wales in relation to an offence under this Act as it applies in relation to an offence under that Act.

(4) Subsection (3) of section one hundred and fifty of the Customs and Excise Act, 1952 (which makes the forfeiture of a justices' licence or certificate operate also as a forfeiture of any excise licence) shall apply as if references therein to a justices' licence or certificate included references to a licence under this Act.

(5) An officer appointed by the Commissioners of Customs and Excise may prosecute for an offence under this Act committed in England or Wales and in that case any fine imposed shall,

subject to paragraphs (a) to (e) of subsection (1) of section one hundred and fourteen of the Magistrates' Courts Act, 1952, be paid to the said Commissioners or such person as they may direct.

Short title,
interpretation,
repeals, extent
and commence-
ment.

12.—(1) This Act may be cited as the Licensing (Seamen's Canteens) Act, 1954.

(2) In this Act—

“appointed day” means, as respects England and Wales, the first day of July, nineteen hundred and fifty-four and, as respects Scotland, the twenty-eighth day of May in that year;

“canteen” includes a part of a hostel where food or drink is supplied, whether or not the food or drink is separately paid for;

“intoxicating liquor” means, as respects England and Wales, spirits, beer, cider, wine and sweets (as defined in the Customs and Excise Act, 1952) and, as respects Scotland, exciseable liquor;

“justices' licence or certificate” means, as respects England and Wales, a justices' licence and, as respects Scotland, a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903;

“licensed premises” means premises as respects which a justices' licence or certificate is in force;

“licensing authority” has the meaning assigned to it by section one of this Act.

(3) Subsection (8) of section one hundred and forty-nine of the Licensing Act, 1953, and, in subsection (1) of section forty-two of the Licensing Act, 1949, the words “or under an authorisation granted under regulation 60AA of the Defence (General) Regulations, 1939”, shall be repealed on the appointed day.

(4) This Act shall not extend to Northern Ireland.

(5) No licence shall be granted under this Act to come into force before the appointed day.

SCHEDULES**FIRST SCHEDULE**

Sections 2, 5.

GRANT AND TRANSFER OF LICENCES**PART I****APPLICATIONS FOR GRANT OF LICENCES**

1.—(1) The applicant for the grant of a licence under this Act shall—

- (a) advertise notice of the application in a newspaper in the area where the canteen is situated on some day not more than four nor less than two weeks before the hearing of the application, and, if the licensing authority so require, on some day or days outside the period permitted by this sub-paragraph but within such other period as they may fix;
- (b) not more than twenty-eight days before the hearing of the application, cause notice of the application to be kept affixed, between ten in the morning and five in the afternoon of two consecutive Sundays, to a conspicuous part of the premises comprising the canteen;
- (c) not less than twenty-one days before the hearing of the application, give notice in writing of the application to the chief officer of police and the clerk to the licensing authority and serve both of them with a copy of—
 - (i) the certificate of the Minister of Transport and Civil Aviation,
 - (ii) the draft rules which it is proposed to make as respects the persons entitled to use the canteen,
 - (iii) a plan of the canteen and particulars of the means of access to the canteen and of the sanitary accommodation for persons using the canteen.

(2) In Scotland paragraphs (a) and (b) of the foregoing sub-paragraph shall not apply but the clerk to the licensing court shall, at least ten days before the hearing of the application, make out and advertise notice of the application in one or more newspapers circulating in the district.

(3) A notice under this paragraph shall state the name and address of the person who is to be the holder of the licence, the kind of retailer's excise on-licence which is desired and the situation of the canteen.

2.—(1) Where an applicant has, through inadvertence or misadventure, failed to comply with the foregoing paragraph, the licensing authority may, upon such terms as they think fit, postpone consideration of his application and, if upon any such postponed consideration they are satisfied that any terms so imposed have been complied with, may deal with the application as if that paragraph had been complied with.

(2) References in the foregoing paragraph to the chief officer of police shall as respects England and Wales be construed in accordance with subsection (4) of section one hundred and sixty-five of the Licensing Act, 1953.

1ST SCH.
—*cont.*

PART II

GRANT OF PROVISIONAL LICENCES

3. The provisions of this Act relating to the grant of a licence shall apply in relation to the grant of a provisional licence subject to the modifications specified in this Part of this Schedule.

4.—(1) A notice under paragraph 1 of this Schedule need not state the name and address of the person who is to be the holder of the licence, the notice to be affixed in pursuance of paragraph (b) of sub-paragraph (1) of that paragraph shall be affixed to the premises on the land where the canteen is to be, and references in paragraph (c) of that sub-paragraph to the canteen shall be taken as references to the proposed canteen after the construction or conversion has been carried out.

(2) Paragraph (a) of subsection (1) of section two of this Act shall be omitted and the reference in paragraph (b) of that subsection to the premises shall be taken as a reference to those premises when the construction or conversion has been carried out.

5.—(1) A provisional licence shall not come into force until the licensing authority have made it final.

(2) The licensing authority shall not refuse an application to make a provisional licence final except on either or both of the following grounds, that is to say—

(a) that the canteen has not been constructed or converted in accordance with the plan served on the clerk to the licensing authority, or

(b) that the person to whom the licence is to be granted is disqualified by any Act for holding a justices' licence or certificate or is in other respects not a fit and proper person to hold a licence under this Act.

(3) An applicant under this paragraph shall give such notices as the licensing authority may require.

PART III

APPLICATIONS FOR TRANSFERS

6.—(1) A person applying to the licensing authority in England or Wales for the transfer or confirmation of the transfer of a licence under this Act shall, not less than fourteen days before the hearing of the application, give notice in writing to the chief officer of police and the clerk to the licensing authority.

(2) A person applying to justices of the peace in England or Wales, or to the licensing court in Scotland or any members thereof, for the transfer of a licence under this Act shall, not less than seven days before the hearing of the application, give notice in writing to the chief officer of police.

(3) A notice under this paragraph shall state the name and address of the person to whom the licence is proposed to be transferred and his trade or calling during the six months preceding the giving of the notice.

7. Paragraph 2 of this Schedule shall apply in relation to the last foregoing paragraph as it applies in relation to paragraph 1 of this Schedule.

SECOND SCHEDULE

Section 11.

PROVISIONS OF LICENSING ACTS APPLIED TO LICENCES
UNDER THIS ACT

Section of the Licensing Act, 1953	Corresponding Enactment for Scotland	Subject Matter
Section 46 ...	—	Forgery of licences
Section 120 ...	Section 65 of the Licensing (Scotland) Act, 1903	Unauthorised sale of liquor
Section 121 ...	—	Prohibition on keeping on licensed premises liquor which licensee is not author- ised to sell
Section 126 ...	Section 17 of the Children and Young Persons (Scot- land) Act, 1937	Exclusion of children from bar of licensed premises
Section 127 ...	Section 30 of the Licensing Act, 1949	Persons under eighteen not to be employed in bars
Section 129 (with subsec- tion (3) there- of omitted)	Section 1 of the Intoxicating Liquor (Sale to Persons under Eighteen) Act, 1923 (with the proviso to sub- section (1) thereof omitted)	Restriction on supply of intoxicating liquor to per- sons under eighteen
Section 131 ...	Section 9 of the Licensing Act, 1921	Long pull prohibited
Section 132 ...	Section 8 of the Licensing Act, 1921	Restriction on credit sales
Section 134 ...	Subsection (2) of section 42 of the Licensing (Scotland) Act, 1903	Alteration of licensed pre- mises
Section 136 ...	Section 98 of the Licensing (Scotland) Act, 1903	Licensee not to permit drunkenness
Section 137 ...	Section 74 of the Licensing (Scotland) Act, 1903	Procuring drink for drunken person
Section 138 ...	Section 68 of the Licensing (Scotland) Act, 1903	Power to exclude disorderly persons from licensed premises
Sections 139 to 141	—	Punishment of licensee coun- tenancing prostitution or gaming

2ND SCH.
—cont.

Section of the Licensing Act, 1953	Corresponding Enactment for Scotland	Subject Matter
Section 142 ...	Section 62 of the Licensing (Scotland) Act, 1903	Offences in relation to con- stables
Section 149 ...	—	Exclusion of licensed pre- mises from provisions re- lating to parties organized for gain
Section 151 ...	Section 95 of the Licensing (Scotland) Act, 1903 so far as relating to licensed inns and hotels or public houses	Right of constables to enter premises
Section 153 ...	—	Licence to be produced on demand
Section 156 ...	—	Temporary licences

*Table of Statutes referred to in this Act*

Short Title	Session and Chapter
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Licensing (Scotland) Act, 1903	3 Edw. 7. c. 25.
Licensing Act, 1921	11 & 12 Geo. 5. c. 42.
Intoxicating Liquor (Sale to Persons under Eighteen) Act, 1923	13 & 14 Geo. 5. c. 28.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 37.
Licensing Act, 1949	12, 13 & 14 Geo. 6. c. 59.
Customs and Excise Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 44.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Licensing Act, 1953	1 & 2 Eliz. 2. c. 46.

